

Fiqh of Fasting

Miftaah Seekers 25-26 Spring Semester

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Introduction

Date Covered: 1/6 @ 10:45

How Fiqh Is Written

- Tiers of fiqh books
 - 1 - Simple, designed to be memorized
 - 2 - sticks within a madhab but offers evidences
 - 3 - comparing opinions between madhabs without evidenced
 - 4 - After that they become encyclopedic in nature
 - 5 - outside the madhabs. Mentions the opinion of tabi'een, more research like.
- The goal of this book: to become aware of the existence of opinions

The Concept of Fasting

- The word sawm
 - Meaning imprison
 - Referring to how we restrict ourselves while fasting
 - The word for restraint being used for fasting in the quran shows what its supposed to be
- Types of people in their fasting
 - 1 - The one who just restrains eating and drinking
 - 2 - The one who restrains from lahu
 - 3 - The one who restrains from halal to prioritize ibadah
- Proving the existence of fasting
 - The ayat that speaks about fasting
 - Spoke about in Uloom Al Quran, possible abrogated ayah
 - Correct understanding of the ayah is that fasting is obligatory upon us
- P. 221 - Various hadiths from quran and hadith presented
 - Need evidence, hence why they are brought in order
- Level of obligation
 - Fard kifaya: communal obligation. Example: funerals. Everyone must
 - Fard ayn: individual obligation
 - Mukallaf: possessing capacity to fulfill the obligation
- The elements of fasting
 - Refraining from food, drink
 - From fajr to magrhib
 - With the intention of fasting

Ramadan

Date Covered: 1/7 @ 1420

Obligation of Ramadan

Key Terms

Aqal/muqalla: those whom the duty of Ramadan falls upon

Two ways to fulfill the duty:

Ada: fulfilling the action in the ordered timing

Kada: making up the action

Groups on Whom it is Mandatory

Both ada/kada are mandatory on people who meet these 4 conditions

1. Above the age of puberty
2. A muslim
3. A mentally sound person
4. In a muslim land (safe place)

Groups on Whom it is Not Mandatory

1. A kaafir
 - a. Example: a revert does not have to make up fasts from when they were not muslim.
2. A mentally unstable person
 - Must be able to make decisions
 - Must understand what is going on around them rationally have cohesive thoughts
 - Examples of mental instability: someone who has dementia or Alzheimer's
 - Not examples: Depression, anxiety, ADHD
3. In a non-muslim land (specifically unable to practice)
 - The person who does not know when Ramadan is or when to fast does not have an obligation
 - Doesn't apply to us, we are safe and aware

Obligation of Physical Fasting

Physical fasting is fulfilling Ramadan through the actual act of fasting, not by any other equivalent means.

1. Mandatory on a resident/ Not mandatory on a traveler
 - Allowed to make up the days outside of Ramadan
 - **Evidence #1:** The Prophet ﷺ made the Badris break their fast, but allowed it on future journeys.
 - Should not try to look for loopholes in this, most travel is safe and easy now.
 - **Evidence #2:** Hadith: It's not from piety to travel while fasting
 - However this hadith was specifically for a man that fell unconscious
 - What he was doing was not piety, should not harm yourself
 - Defining travel
 - When you leave the boundaries of your city you become a traveler
 - Your permanent residence is somewhere you will never be a traveler in
 - Defining permanent residence
 - A permanent residence is where you plan on living indefinitely with no time frame
 - However it is possible to have multiple permanent residences
2. Mandatory on the healthy/Not mandatory on the sick
 - Defining sickness
 - Minor illnesses will rely on taqwa
 - If the sickness is so bad that there is tangible harm or you need to take medication
 - Shouldn't be excusing yourself from fasting due to a minor cold
3. On women who do not have tahara from menstruation and post natal bleeding
 - Not permissible at all to begin with

Conditions of Validity of a Fast

1. The person makes the intention in a time when it is valid
 - There is a time where making the intention is no longer valid
 - Within Ramadan you have until
 - Hanafi: dhuhr
 - Maliki/Shafi/Hanbali: fajr
 - Outside of Ramadan
 - Until dhuhr
 - Where does this become relevant?
 - If in the middle of Ramadan, you make the intention not to fast and then you decide later than fajr to fast, only Hanafis will accept it
 - What does intention look like?
 - Ex: intention for salah. It is necessary to have but not to verbalize.

- Niyyah is in the heart. And the same applies for fasting; the night before you would need to have a firm resolve to fast the following day.
 - Does the type of fast need to be specified (ex: a fast of Ramadan)?
 - Hanafis: do not need to specify that it is a fast of Ramadan, and can have a generic intention.
 - Other madhabs: say it must be made specific
 - Can the intention for Ramadan be made at the beginning of the month?
 - Yes. Generally in Ramadan the intention is default unless the person actively sets other intentions.
 - The intention is something that is felt from the heart, it does not need to be verbalized.
2. Being free from menstruation/postnatal bleeding (for a woman)
 3. Abstinence from food, drink, and intercourse from fajr to maghrib
 - To be explained further what counts as each

Not Conditions

1. It is not a condition that a person is janaba (free from major ritual impurity) to begin their fast
 - Caused by ejaculation for men
 - It is a state of janaba which can easily be exited by making ghusl, hence why it doesn't prevent someone from starting their fast
 - Cannot enter the state while fasting, it will break their fast

Intention

Date Covered: 1/8 @ 1400

The simple rule: when the fast is naturally specified, then it doesn't need a specific intention because you did it by an external factor. However if there is no external factor, you must make the intention.

- If in your mind you know that you are praying dhuhhr that is sufficient
 - A person who experiences waswas might be advised to say it out loud
- The intention can be made any time from the night before to mid-day (right before dhuhhr) except in 3 times
 - Ramadan
 - Fasting by oath
 - Commitment to fasting on a specific day
 - In these cases the external factor (specification) establishes the intention
- Validity
 - The fast of Ramadan is valid whether you make the intention or not
 - Specified nadr (oath) is valid whether for the nadr or for nafl
- Situations where you need to specify your intention ta'een (before fajr)
 - Making up a Ramadan fast outside of Ramadan
 - Kaffara (expiation)
 - Nadr (oath) that does not have a time window

Levels of Fasting

Date Covered: 1/8 @ 14:02

Key terms

Dhalil qatai: When something is fard by dhalil qatai it means it is absolutely established by mutawaatir and denying it would take them out of the fold of islam. Considered fard.

Wajib: Something that is obligatory but not mutawaatir. Still mandatory to do and sinful to skip. Example: If someone was to deny withr

Fard Fasting

The following can also be fulfilled by freeing a slave, a certain amount of fasting, or feeding the poor (in order of preference) if the person is unable to fast.

1. Making up a nafl fast that was broken
 - Hanafis: say it is wajib to make it up
 - Malikis: say it is fard
 - The Prophet ﷺ told Aisha and Hafsa to make it up
2. A nadr (oath) to fast
 - If you take a nadr that you will fast you must do it
 - Not good to take nadrs
 - Sahaba would say the only reason you would do that is to get something out of someone who is stingy
 - Good nadr: out of gratitude for a blessing
3. For expiation of sins
 - Called kaffara (expiation)
 - If somebody does the following:
 - Breaking fast in Ramadan with no excuse: Must fast 60 days. Maliki and Hanbali say this only applies to breaking fast by intercourse.
 - Dhihar: Severe insults/distancing from one's spouse. Islam does not consider this divorce but kaffara must be done. Must also fast 60 days.
 - Breaking a binding oath: Not all "wallahi"s are binding. Allah does not hold you accountable for all of them. Aisha RA says that it is not binding. Must free a slave, feed 10 poor people, or fast 3 days (wajib)
4. Violations of Ihram in Hajj
 - 3 for going and 7 for returning
5. Committing manslaughter

Sunnah Fasting

Masnun: A sunnah the Prophet ﷺ never missed

Mandudh: The Prophet ﷺ occasionally did

1. Ashura
 - The Prophet ﷺ saw the Yahud fasting on Ashura and did an extra day to differentiate from them
2. Every month
 - The Prophet ﷺ would try fasting 3 days of every month
3. Mondays and Thursdays
4. Shawwal
5. Arafah
6. The fasting of Daud (every other day)

Discouraged Fasting

Makruh: here it means discouraged.

1. Fasting Ashura on its own
 - Due to similarity to the fasting of the Yahud
2. Sawm al Wisal
 - Fasting multiple days in a row without eating or drinking
 - The Prophet ﷺ prohibited it because it weakens the body
 - There is a point when fasting becomes harmful
3. Fridays/Non-specified days with the intention of more virtue
 - Some ulama consider this makruh since the previous nations would fast on their holy days
 - Should not specify the fast as being more virtuous on Fridays, it is not

The Hanafi madhab differentiates between makruhs:

- Makruh tanzih: disliked but not sinful
- Makruh tahrimi: disliked and sinful
- Difference of makruh tahrimi from haram is that it is distinguished by aqeedah (the madhab considers it haram but cannot definitively say)

Moon Sighting

Date Covered: 1/8 @ 1413

- Hadith: Fast when you see the crescent moon and break fast when you see the crescent moon, and if it is cloudy verify that there are 30 days of Shaban
 - Ruyatihi: meaning when you see the moon
 - Not the existence or presence, but actual sighting
 - From this hadith we derive that we start Ramadan when the moon is sighted or that 30 days of Shaban have passed
- Seeing the moon
 - With your naked eye: when the moon is born it is very to see, it's just a small sliver
 - With technology: considered valid
 - Not valid - with calculation: estimating by the moon's cycle Considered problematic.
- Top rule: don't argue with anyone
 - Calculation of moon sightings is not legitimate. The Arabs of the time could probably calculate better than us. It did not get more accurate. The new moon fluctuates; it cannot be calculated no matter how accurate our methods get.
 - However, what your family or masjid is doing is bigger priority
 - There is a concept that collective mistakes in Ramadan and Eid are parted.
 - The Prophet ﷺ said: ...
 - If you are the one making the decision for your masjid, there is no legal basis
 - The start of this movement was due to an attempt to standardize the calendar
 - Universal consensus that use of calculations to decide the day in advance is not permissible but you should follow what your local community is doing
 - Book rec: Cesarean Moon Birth by Hamza Yusuf
- Taking consideration for calculations
 - The bar of evidence for starting Ramadan is one person.
 - The bar of ending Ramadan is much higher
 - If there is some issue in the sky that makes it difficult to see the moon, one testimony will not be accepted
 - If the calculation state that the weather will make it difficult to see, that would make the standard stricter
 - Nowadays we treat each country as one witness. Would need multiple countries to witness.
 - Example: Whether shows low probabilities for sighting, and then multiple government bodies sight the moon for example
- Masalah

- No actual evidence that you need a large number of people
- But if they didn't see it it would be weird
- Doesn't apply much now due to light pollution
- Once one country establishes sighting, they all need to accept it (if it is within valid reason)
- Story: Mufti Aasim
 - Mufti Aasim's teacher in Pakistan was the first to make a salah time table.
 - In Canada, Mufti Aasim drove to the top of a mountain for a whole year to record the exact time of fajr.
 - That data became the coordinate for the region
- Summary
 - Don't argue with anyone
 - Calculation is not valid
 - Follow your local community

Fasting on the The Day of Doubt

(Hukmus Sawm wa Yawmushak)

Date Covered: 1/13 @ 1400

- Yawmush Shak
 - The day of doubt
 - Between Shaban and Ramadan
- The Prophet ﷺ told sahaba, anyone who fasts on this day has disobeyed the Prophet ﷺ
 - If no one has reported the moon sighting it is not permissible to add days to Ramadan
 - The Prophet ﷺ did not want any ibadahs being added
 - Specifically, to Ramadan
 - However if a person already has a habit of fasting and it aligns, then it works
- The Prophet ﷺ told them to wait to eat
 - Then if someone has seen the moon, they will break their fast
 - In the Hanafi madhab, anyone who fasts with the intention of nafl is allowed

Conditions of the Fast

Date Covered: 1/13 @ 1405, 1/14 @ 1415

Key Terms

Soora: Physical form. What breaks your fast has a physical form

Maana: conceptual/non-physical. Your body gains some kind of nutritional value

Nisyan: forgetfulness. You forgot you were fasting

Khata: making a mistake. Doing something unknowingly

Examples of Soora vs Maana

Example: Eating a cheeseburger

- Fulfills both conditions

Example: Eating rocks

- Soora only

Example: IV fluids

- Maana only

Example: Nicotine patch

- Neither

Things that Do Not Break Fast

1. Forgetful Breaking of the Fast

- Eating, drinking, or intercourse forgetfully

2. Oiling

- Hair, skin, etc.
- Majority will say it is impossible to achieve nutrition

2. Kohl

- Manfad: meaning passageway
- The question: is there a passage from the skin to the stomach? No

3. Cupping

- Hadith: The Prophet ﷺ said that cupping breaks the fast of both the receiver and the doer.
- Imam Ahmed explained that they were backbiting and it lost the reward of the fast.
- Or that cupping weakens the body, and it should be avoided while fasting
- The Prophet ﷺ said Allah doesn't need fasting if backbiting

4. Intending to break the fast and not doing it

- Hanafi: the fast is not broken
 - Others: it is broken, qada must be made
 - Maliki: Kaffara
5. Mistakes
 - Anything unintentional
 - Or if something that is out of your control
 6. Tasting for the purpose of evaluation
 - Does not have soora or maana
 - Not recommended to do frivolously
 7. Janaba
 - Major ritual impurity
 - Specifically in the context of waking up with it
 8. Mucus in the nose that is swallowed
 - Does not count as an ingestion
 - Anything already inside of your body can not break your fast
 9. Vomiting
 - Swallowing vomit unintentionally does not break
 10. Eating something in between the teeth
 - Has to be a very small amount
 - Smaller than a chickpea
 - Can be swallowed and will not break the fast
 11. Putting something in the mouth that is not swallowed or digested
 12. Needles
 - Whether put into the skin or the veins
 - No form of injection breaks fasts
 - Only if it is something you could survive off of
 13. Objects put into the ears

Things that Break the Fast

1. Anything inhaled that has a physical body
 - Do inhalers count? yes
 - A person who needs inhalers instead pays fidya
 - Fidya can be given to anyone poor
 - Includes but is not limited to: vaping, inhalers
 - Does not include: scents, candles, bukhoor
2. Eating, drinking, intercourse

Actions/Penalties

Date Covered: 1/14 @ 1420

Key Terms

Qadaa: making up an act of worship

Kaffara: is a penalty that applies when the complete prime was committed

Makruh: discouraged actions

Mustahab: encouraged actions

Actions which require Kaffara with Qadaa

1. If a person intentionally breaks their fast in Ramadan with both soora and maana
 - If only one criteria is met, qadaa must be made
 - Kaffara is required for things that people naturally consume
2. Consuming non nutritional items without reason
 - kaffara can overlap with qadaa for some things without needing to fulfill both soora and maana
3. Consuming medication for non essential reasons
4. Intercourse
5. Swallowing rain water intentionally
6. Eating raw materials
7. Eating mud

Actions which do NOT require kaffara with Qadaa

1. Broken fasts outside of Ramadan (nafl fasts)
 - Broken within ramadan requires kaffara
2. Mistakes
 - Intentional breaking requires kaffara
3. Dire necessity
 - If you just broke it for fun it requires kaffara
4. Threatened
 - If you were not forced or threatened it requires kaffara

Ways to Fulfil Kaffara (in Order of Priority)

1. Freeing a slave
2. Fasting 2 consecutive months
 - While avoiding the months of Eid
 - If Eid occurs while doing kaffara, the period will be reset

3. Feeding 50 people

- Madhab opinion will depend on if you can do this instead of option 2

Actions which Require Qadaa Only

1. Soora or maana (one of the two) is violated
2. Fast broken for a valid reason
 - a. Travel: automatic excuse
 - b. Sickness: not lenient
 - c. Pregnancy: best advice of a health professional
 - d. Insanity: complete diminishing of cognitive ability
 - e. Remaining points found in Conditions of Fasting tab
3. Swallowing an item of no nutritional value
4. (NEW) Being forced to eat
5. Being on the verge of starvation
6. Breaking on accident
 - a. Ex: if you thought maghrib came in, or suhoor was later
 - b. Should not be "hitting buzzer beaters"
 - c. Adhab of iftar is to break your fast quickly but to be sure of the adhan
 - d. Following the time table of the masjid near you instead of apps when in a group
 - e. Qadaa to be safe: permissible. Can pray sunnahs or fast nawafil for the purpose of juzb (covering faults in the fard)
7. Swallowing water while gargling
8. Eating on accident and breaking by misunderstanding the status of the fast
9. Travelling in the middle of a fast
 - a. The breaking of a fast to travel unplanned only requires qadaa
10. Somebody that drops water into their ear
 - a. Fatwas are not given on this anymore
 - b. Ulama no longer recognize the ear as a passageway
11. Someone who is receiving a medical treatment that reaches their stomach

Makruh Actions of Fasting

Date Covered: 1/14 @1435

Things that are Makruh

Anything that brings you too close to breaking your fast

1. Chewing/tasting while cooking

2. Gathering and swallowing saliva
3. Anything that causes excessive weakness
 - Bloodletting/hijama
 - Excessive physical strain
4. Any type of relationship with their spouse that could lead to intimacy

Things that are not Makruh

1. Things with potential enter the body
 - oils, lotion etc. because the pores are not a manfadh
2. Showering
3. Wrapping oneself in a cool towel
4. Rinsing the mouth to remove dryness
5. Using miswaak

Mustahab Actions of Fasting

Date Covered: 1/14 @ 1443

1. Suhoor
 - This sunnah distinguishes us from the previous peoples
 - Even if you don't feel like it, it's good for you
2. Delaying suhoor
 - Delay to a reasonable point
 - A few minutes before fajr you should stop
 - Cannot be eating while athaan is going off, must spit it out
3. Hastening to break the fast
4. Entering a state of tahara by fajr
5. Protecting from the sins of the tongue
 - This is one of the acts most emphasized by the Prophet ﷺ
6. To take full advantage of the opportunity of Ramadan for ibadah
 - Push yourself to do better
7. To control anger
 - The Prophet ﷺ speaks about what to say when feeling angry
8. To generically avoid permissible desires
 - Like sleeping, entertainment, other comforts etc.
 - Ramadan is not the month to indulge
 - Not a time for chilling
 - Ramadan is like a training camp for the rest of the year
 - Like athletes training in the mountains

Permissible Excuses

Date Covered: 1/14 @ 1450

“Islam is a religion that speaks to the fitra of people...”

Any person who breaks fast for the below permissible reasons only needs to do qadaa (make up the fast) at some point in their life.

1. Sickness
 - If somebody is worried that fasting will cause them harm due their sickness
 - Or that they will get worse
 - Or that not being able to take the medicine will prolong the sickness
2. Traveler
3. On the verge of death
4. Pregnancy
 - Where it may harm her or her child
5. Breastfeeding
 - Where it may harm her or her child
 - Even if formula is an option, a woman can choose to breastfeed
 - Pregnancy and breastfeeding receive the same leniency as sickness
6. Menstruation and postnatal bleeding
 - Haamil murdhi
 - Grammar note: Making any word muwannath and not adding a taa marbutah is to emphasize that it is not male
 - Inherently female things dont need taa marbutah
7. Elderly
8. The one who has no hope of fasting again
 - Will pay fidya
9. (nafI only) Any reason
 - Must do qadaa

Extra Notes

- It is preferable to do qadaa as quickly as you can
- If you reach the next ramadan before finishing your qadaa, just fast as usual

Nadr (Oaths)

Date Covered: 1/19 @ 1410

- Mandates of oaths
 - Anybody that takes an oath to obey Allah, then let them obey Allah
 - And anybody that takes an oath to disobey should not fulfill it
 - The thing you are taking oath on has to be intentioned for fulfilling the oath and no other purpose
 - It cannot be a mandatory act
 - It cannot require a separate condition (like doing a sajda after reading an ayat where its required)
- Binding oaths
 - Those which are made on ibadah mahda
 - Ibadah mahda: a pure worship
 - Example of a secondary worship: birr ul walidayn (taking care of the parents) is a generic act, it is not a pure form of worship
- Examples of ibadah mahdas
 - Fasting
 - Salah
 - Itikaff
 - Wudhu (differs by madhab, hanafis only)
- Scenario: Taking an oath to fast on a day when it is not permissible (ex. Eid)
 - The oath is valid in the hanafi madhab but you cannot fulfill it
 - Other madhabs say the oath is upon a haram act so it is not valid
- Oaths in general are makruh
 - But if you were to take one
 - It is encouraged only out of gratitude

Itikaff (Seclusion)

Date Covered: 1/19 @ 1420

- Defining Itikaff
 - Staying where a jamaa exists with the intention of worship
- Mandatory
 - Only if a person takes an oath
- Sunnah Muakkadah (Kifayatan)
 - It is a sunnah on the community if the whole community does it
 - This is one of the best ways to grow and enforce a community
 - Having monthly itikafs in the masjid for example
- Sunnah
 - In the last 10 nights of ramadan
- Wajib
 - Only by the length of an oath that was made
- Defining itikaff
 - The bare minimum of it is just one moment
 - Ghazali: the difference between people is there intention
 - A high level worshiper will make numerous intentions (driving to the masjid, walking to it, being in itikaff while there, seeking knowledge, etc.)
 - The more you stack intentions the higher the capacity for reward
- Defining the masjid
 - Hanafi: must have an imam, muaddhin, and a jamaa. For the women it is permissible to do it in the masjid of the home.
 - Maliki/Shafi'i: say that it just needs to be a place where people pray
 - The other madhabs say otherwise
 - There was time where the Prophet ﷺ got upset with the wives for setting up their tents near the Prophet ﷺ and told them to leave. Thus ulamma differ.
 - Majority scholars say women may do itikaff as long as their is accommodation
 - What part of the building is considered the masjid? Bathrooms, wudhu areas, etc are not considered part of the masjid generally.
- Mustahabb
 - Itikaffs that are mandatory should also include fasting

Invalidating Acts of Itikaf

1. Leaving the masjid
 - Except by natural necessity (leaving the musallah to go to the bathroom), with the condition they are only outside of it for as long as they need

- Or by religious need (jummah is held in a different place)
 - Or by dire need
 - 2. Menstruation
 - 3. Intercourse
- A person who is in itikaff CAN eat and drink
 - They CAN sell good, as long as they do not bring it into the masjid

Makruh Acts of Itikaf

1. Bringing merchandise into the masjid
2. To be silent, if they believe it to be an act of ibadah

Adhab of Itikaff

1. Watching the tongue
2. Picking the best masjid
 - a. By virtue (Haram, Nabawi, Aqsa)
 - b. Then by size/facilities
3. Engaging in worship and being busy with it